



DEFENSE LOGISTICS AGENCY
CONTRACTING SERVICES OFFICE
5404 J AVENUE, BLDG 404
NEW CUMBERLAND, PA 17070-5059

Date March 10, 2024

Justification for Other than Full and Open Competition IAW FAR 13.106-1(b)

1. Nature and/or description of the action being approved:

DLA Document Services has a need to issue a 1 month (Apr 1, 2025 - April 30, 2025) and 1 one month option May 1, 2025 through May 31, 2025) for 20 devices to continue services for SP7000-18-F-0157 without using competitive procedures. Original contract provided for leased multi-functional devices (MFDs), full service maintenance, all consumable supplies (excluding paper), key operator training, networking functionality, security accreditation along with technical and network installation support is required for OCONUS. +

2. A description of the supplies or services required to meet the agency's needs (including the estimated value):

Original order SP7000-18-F-0157 procured 21 devices (20 being extended on this SSO), with full service maintenance and all consumable supplies (excluding paper) for OCONUS. Lease support is requested to allow continuation of performance until replacement devices are delivered under pending replacement awards for NMCI. The estimated base value is \$ [REDACTED] & \$ [REDACTED] if all options are used. +

3. An identification of the statutory authority permitting other than full and open competition:

FAR 13.106-1(b) Soliciting from a single source. (IAW U.S.C. 41 §3304)

(1) For purchases not exceeding the simplified acquisition threshold.

(i) Contracting officers may solicit from one source if the contracting officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization)

4. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited:

Although other vendors are available to supply MFDs with consumables and services, there is a short time period to allow installation. No other vendor would be able to deliver new NMCI devices in time (due to testing requirements) for a 1 April 2025 start date. These devices are currently in place and need to be extended on a sole source contract. Since the devices in place are under a lease, no other vendor can service the lease of another vendor without violating the lease terms. The only way to ensure uninterrupted support to the Warfighter is to issue a contract to the current vendor.

- 5. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by Subpart 5.2 and, if not, which exception under 5.202 applies:**

Notice is not required per FAR 5.101(a)(1).

- 6. A description of the market research conducted (see Part 10) and the results or a statement of the reason market research was not conducted:**

Market research indicates that an adequate competition pool exists for requirements of this type and it will be competed. The sole source order is being put in place long enough for the devices to be installed. In accordance with DLAD 10.001-90(b) DLA activities will not delay the instant acquisition to conduct market research when the estimated dollar value is less than the simplified acquisition threshold, unless the contracting officer determines it is cost-effective to do so.

- 7. Any other facts supporting the use of other than full and open competition, such as:**

- Explanation of why technical data packages, specifications, engineering descriptions, statements of work, or purchase descriptions suitable for full and open competition have not been developed or are not available.
- When 6.302-1 is cited for follow-on acquisitions as described in 6.302-1(a)(2)(ii), an estimate of the cost to the Government that would be duplicated and how the estimate was derived.
 - Include a copy of the previous justification.
 - The approval authority shall determine whether the planned actions were completed. If the actions were not completed, the justification for the follow-on acquisition shall be approved by the approval authority one-level above the approval authority for the previous justification (see FAR 6.304). If the previous justification was approved by the Senior Procurement Executive (SPE), the approval remains at the SPE level. DFARS PGI 206.304 (a)(s-70)(ii)
- When 6.302-2 is cited, data, estimated cost, or other rationale as to the extent and nature of the harm to the Government.

Original order SP7000-18-F-0157 is for the lease of 21 devices (20 devices being extended on this SSO), in which title/ownership is retained by Flatwater. Due to highly specialized supplies or services a competitive contract action for these devices is not possible as the devices are being leased from Ricoh who is the only vendor capable to continue the lease of the existing equipment.

Although other vendors lease MFDs, no other vendor has lease rights to the existing equipment. Failure to award a new order would result in numerous DLA

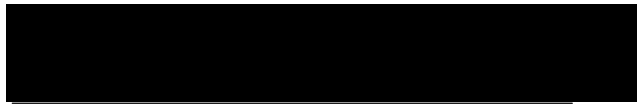
- 8. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition (Include the results of the request for information or the sources sought notification in accordance with DFARS PGI 206.302-1 or include the waiver from the HCA or designee):**

None. DFARS PGI 206.302-1 required when utilizing the authority at FAR 6.302-1.

9. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required:

Due to highly specialized supplies or services a competitive contract action for these devices is not possible as the devices are being leased from Flatwater who is the only vendor capable to continue the lease of the existing equipment. The follow on requirement has been competed. This order is being put in place long enough until the follow on devices' new order period of performance to commence.

I certify that any supporting data that is the responsibility of technical or requirements personnel and which form a basis for the justification are complete and accurate.



Technical Personnel

Approval:

The justification, as presented above, is accurate and complete to the best of my knowledge and belief. Additionally, I have determined that the anticipated cost to the Government will be fair and reasonable.



Contracting Officer

Competition Advocate (Above \$700K but not exceeding \$13.5 million)

Head of the Procuring Activity (Above \$13.5 million but not exceeding \$93 million)

Senior Procurement Executive (Above \$93 million and as required by DFARS PGI 206.304(a)(S-70)(ii))